19-G-0309 - 19-G-0310 - 11-7-19

NEW YORK STATE

DEPARTMENT OF PUBLIC SERVICE

CASE 19-G-0309 - PROCEEDING ON MOTION OF THE COMMISSION AS TO THE RATES, CHARGES, RULES AND REGULATIONS OF THE BROOKLYN UNION GAS COMPANY D/B/A/ NATIONAL GRID NY FOR GAS SERVICE.

CASE 19-G-0310 - PROCEEDING ON MOTION OF THE AS TO THE RATES, CHARGES, RULES AND REGULATIONS OF KEYSPAN GAS EAST CORP. D/B/A NATIONAL GRID FOR GAS SERVICE.

TELEPHONIC PROCEDURAL CONFERENCE

Three Empire State Plaza

Third Floor Hearing Room

Albany, NY 12223

A.L.J. MAUREEN LEARY

A.L.J. JAMES COSTELLO

19-G-0309 - 19-G-0310 - 11-7-19

A.L.J. LEARY: Good afternoon everyone. This is Maureen Leary and I'm here with Judge James Costello. I'm going to call the case and then we'll take appearances over the phone.

I'm calling Case 19-G-0309 and Case 19-G-0310, proceeding on the motion of the Commission as to the rates, charges, rules and regulations of the Brooklyn Union Gas Company, d.b.a. National Grid, for gas service and Keyspan Gas East Corporation, doing business as National Grid for gas service. We're going to take appearances over the phone. What I'd like to do is, start with the Company representatives, followed by D.P.S. Staff, the City of New York --

A.L.J. COSTELLO: Utility Intervention Unit.

A.L.J. LEARY: -- oh, U.I.U., Secretary of State, LIPA, PULP, Mr. Wyman, Environmental Defense Fund, Estates New York Real Estate Services, New York State --

A.L.J. COSTELLO: Labor's Organizing Fund.

A.L.J. LEARY: -- Labor's Organization -- sorry, I'm having a hard time reading Judge Costello's -- so, let's go first with the Company's representative; your appearance.

MR. O'BRIEN: So, for the Company, Patric O'Brien, Phil DeCicco and Kenneth Maloney.

A.L.J. COSTELLO: And, just at the outset, just so you know, we are transcribing this call, so whenever you talk after we have taken appearances, whenever you talk, we're going to ask that you please identify yourself before you speak, so that we can have a clean transcript.

A.L.J. LEARY: And, if you don't do that, you're going to be cut off; warning. So, I'm sorry, is that it for the Company?

MR. O'BRIEN: Patric O'Brien for the Company, yes, that's -- that's it.

A.L.J. LEARY: Great. D.P.S. Staff?

MR. GOODRICH: Hi, this is Branden Goodrich, for D.P.S. Staff and I'm

joined with Nicholas Forst and Racquel Parks.

A.L.J. LEARY: The last name again?

MR. GOODRICH: Branden Goodrich, Nicholas Forst, F-O-R-S-T and Racquel Parks, P-A-R-K-S.

A.L.J. LEARY: Thank you. City?

MR. LOUGHNEY: Yeah, this is for the City, it's Robert Loughney, Adam Conway and Justin Fung.

A.L.J. LEARY: U.I.U.?

MS. KASOW: This is Jillian Kasow for U.I.U.

A.L.J. LEARY: And, LIPA?

MR. PODOLNY: Ken Podolny from Leedam and Ladeau for LYPA.

A.L.J. LEARY: Would your state your name again?

MR. PODOLNY: Ken Podolny, P-O-D-O-L-N-Y.

A.L.J. LEARY: Thank you. And, PULP? PULP's no -- no appearance. Good. Not good but got it. Mr. Wyman, are you on?

MR. WYMAN: Yes, I am, Bob Wyman

here.

A.L.J. LEARY: Okay. And, Environmental Defense Fund?

MS. MURPHY: This is Erin Murphy for the Environmental Defense Fund.

A.L.J. LEARY: Great and Estates New York Real Estate?

MR. FUNK: Yes, this is Peter Funk for Funk and Zeifer for Estates. Thank you.

A.L.J. LEARY: Laborers Organizing Fund? Okay. No appearance. And, anybody -- Sane Energy Project?

MS. ZIESCHE: Yes, this is Lee Ziesche with Sane Energy Project on.

A.L.J. LEARY: Would you spell your last name?

MS. ZIESCHE: Z-I-E-S-C-H-E.

A.L.J. LEARY: Thank you.

A.L.J. COSTELLO: Now, these were -- those were the -- the parties that had filed testimony in this case? I'm just -- I'm going -- I'm sorry, go ahead. Who is that?

MS. STRAUSS: Yes, this is

Valerie Strauss, S-T-R-A-U-S-S with the Association for Energy Affordability. We're an active party but we did not file testimony.

A.L.J. COSTELLO: Okay. That's what I'm -- what I'm going to do is, just go down a list of other -- other parties who didn't file testimony. So, let me just do the list, that way we can keep it clear. New York Retail Choice Coalition? No. Anybody for Family Energy, Inc.?

MR. BLAKE: Yes, this is Kevin Blake for Family Energy.

A.L.J. COSTELLO: Okay. Thank you. B.S.C. Owner? No. New York Geothermal Energy Organization? No. New York Energy Consumers Council? No. Centsible House? Marathon Energy Corp? Consumer Power Advocates? No. New York Oil Heating Association?

MR. PETROCCIONE: Your Honor, this is Emilio Petroccione.

A.L.J. LEARY: On behalf of?

MR. PETROCCIONE: The New York Oil Heating Association and the Oil Heating

Institute of Long Island.

A.L.J. LEARY: And, would you spell your last name?

MR. PETROCCIONE: Absolutely, it's P as in Peter E-T-R-O-C-C-I-O-N-E.

A.L.J. COSTELLO: Okay. Thank you. A.A.R.P.?

MR. RIGBERG: This is Saul Rigberg R-I-G-B-E-R-G.

A.L.J. LEARY: We cannot hear you. Would you please speak up?

MR. RIGBERG: This is Saul Rigberg with A.A.R.P.

A.L.J. COSTELLO: Okay. Okay. And, then we had the Association for Energy Affordability. I just didn't -- let me get your name again please.

MS. STRAUSS: Yes, it's Valerie Strauss, S-T-R-A-U-S-S.

A.L.J. COSTELLO: Okay. Thank you. Great Eastern Energy? No. And, then the last one I have listed is Municipal Electric Utilities Association? No. Okay. Is there anyone else that is making an appearance on the

record today? Okay. Thank you.

A.L.J. LEARY: Okay. Make sure that your phones are on mute unless you're ready to speak. Again, this is Maureen Leary. Don't forget to state your name before speaking.

We may just specifically ask certain parties for input in the first instance. The purpose of today's procedural conference, is to discuss scheduling in this matter, particularly in light of the -- the very busy time period that we're coming up to at the end of this month, that will take us on through the New Year. And, we did receive Mr. DeCicco's October 31st, 2019 letter, in which he -- I'm sorry, in which the companies further extended the suspension period through and including I believe June 1, 2020.

So, we'd like to hear from the parties regarding in the first instance, the potential dates for the commencement of an evidentiary hearing, so that we can organize ourselves for the other required submissions that I think you're all familiar with, vis a

vis Judge Costello and my memo to the parties, in preparation for what was Tuesday's evidentiary hearing on November 12. So, can I hear from the Company on potential dates for a hearing?

MR. O'BRIEN: So, Judge, Patric O'Brien for the Company. I guess we're looking at -- we would be ready to go December 9th, if that works for the parties.

A.L.J. COSTELLO: Okay. Well, let me just ask, what -- what sense do you have, as far as the amount of days that we'll take -- will take for the hearing because I have, actually, hearings scheduled in another case starting on the 16th. So, that makes it difficult for me if it's, which is most likely, it's going to be more than the five business days.

MR. O'BRIEN: So, Judge, I'm assuming it's -- it's Patric O'Brien again, that it would -- that this would take about two weeks.

A.L.J. LEARY: Wow. All right. So, that -- you know, we have -- we have some

blackout time frames because of other cases that we're handling, so that's one of the sort of urgent reasons that we wanted this call to happen sooner than later. Let's hear from D.P.S. Staff.

MR. GOODRICH: Your Honors, this is Branden Goodrich. As with the -- the Company, we were intending to be ready to go on -- on the 9th. Obviously, everyone can always use more time to prepare but we -- we felt we would -- we would make ourselves ready by the 9th. But we do, like the Company, assume that this'll take more than one week and likely two weeks.

A.L.J. COSTELLO: Okay. Before we go further, can I just ask if -- if there's any potential for the -- the Company to consider a further extension of the suspension period and allowing the hearings to go forward in January, so that we don't run into the holidays and we -- you know, at that -- at this point, January is open for us, as well. I don't know if that's something that you would consider. That's directed to the Company.

MR. O'BRIEN: So, Judge, Patric O'Brien again, we'd have to take that under advisement. I think our preference would be to start the 9th but we'll certainly take it back.

A.L.J. LEARY: Well, I'm going to be a little more candid. The 9th is not a real possibility for the hearing -- for the judges. So, we need some -- some other options here and so -- so that week of the 9th and the week of the 16th, are two of the blackout weeks that we have. Obviously, if you're talking about the week before that, we have some real -- we're -- we're going to be really jammed up and we do not want to do that to the parties. So, we have to be talking about something a little different and certainly the week of the 23rd, is not optimal because you're going to be doing -- well, never mind, that's a holiday week, as is the following week. So, at that point, we're in January. So, does -- do any of the other parties, the City of New York, would you like to be heard on this?

MR. LOUGHNEY: Your Honor, I think we were anticipating January 9th and, you

know, we're sort of the same as the Staff and Company, in terms of expecting two weeks or something close to that but we're not adding anything positive here, no.

A.L.J. LEARY: Could you -- could you identify yourself for the record again?

MR. LOUGHNEY: Yes, I'm sorry, it was Robert Loughney.

A.L.J. LEARY: Mr. Loughney, did you mean to say December 9th?

MR. LOUGHNEY: Yes, I did.

A.L.J. LEARY: Okay. Anyone -- who else do we have here? What about Environmental Defense Fund, are you planning to participate in the evidentiary hearing?

MS. MURPHY: This is Erin Murphy for E.D.F. Yes, Your Honor, we are planning to participate in the evidentiary hearing. I think we were anticipating and preparing for a hearing in early to mid-December but are certainly open to and would welcome a January time frame.

A.L.J. LEARY: Okay.

A.L.J. COSTELLO: Okay. What -- what we'll probably -- I mean, the 16th is definitely out.

A.L.J. LEARY: We're going to have to do it the --.

A.L.J. COSTELLO: We would either have to do it starting the week of December 2nd and then going into the week of the 9th or if the Company can get back to us and is willing to extend the suspension period for another thirty days, then we can talk about doing it in January. But, at this point and I know it jams people up because it's -- it's close but we -- I -- I just can't do it. We're not available on the 16th, so it would have to be the week starting December 2nd and then we'd carry over into the following week, again, unless we can get -- unless the Company is willing to extend that extension -- the suspension period.

A.L.J. LEARY: So, those two weeks, 12/2 and 12/9, we're just going to have to work around that. Mr. O'Brien, is this something that you can -- can raise with the

Company and get back to the parties by close of business day tomorrow?

MR. O'BRIEN: Patric O'Brien, Judge. Yes, I can do that.

A.L.J. LEARY: Okay. So, if it is those two weeks, I think we're -- we will be putting out almost immediately, a memo that will have some very tight time frames for the parties to meet, since it is already almost -- it's the 7th, so it's -- it's --.

A.L.J. COSTELLO: Yeah. So, we would hear back -- we'll -- we'll wait to hear back from Mr. O'Brien and then probably if -- if we hear back, either get something out tomorrow evening or Tuesday --

A.L.J. LEARY: Tuesday.

A.L.J. COSTELLO: -- morning. And, we'll set dates accordingly, depending on what we hear back.

A.L.J. LEARY: And -- and, the dates won't be any mystery if you take a look at what -- what we circulated, I believe is on October 28th. That memorandum will give you a sense of what the dates will be.

A.L.J. COSTELLO: And, if -- if we do -- if we do get to -- if we do go into January, we're talking about starting the week of the 6th of January, so -- just so everybody would know it would start the 6th and carry over to the following week.

MS. KASOW: This is U.I.U. I wanted to weigh in. We're -- we're available any of those time frames. I just want to also note, that if any of our experts are cross examined, we won't be available on December 12th and 13th.

A.L.J. COSTELLO: Okay. And, could you just state your name again for -- for the transcript?

MS. KASOW: This is U.I.U.

A.L.J. LEARY: Your name?

MS. KASOW: Jillian Kasow with U.Y.U.

A.L.J. COSTELLO: Okay. Thank you.

MS. KASOW: Thank you.

A.L.J. LEARY: Thank you.

MR. CONWAY: Your -- Your

Honors, this is Adam Conway for New York City. I just want to note on the City's concerns, that starting earlier than the week of 12/9, would probably be problematic from our end. We have a number of people that we need to coordinate and we're sort of circling around the December 9th deadline internally. So, I think -- we just note our preference that if the 12/9 and 12/16 wouldn't work, then our preference would be to move it to January.

A.L.J. LEARY: I think that we don't even have to take a vote here about that preference because that's one of the reasons we're having this call. Thank you for your input. Those are the kind of things that you're -- you're probably going to have to work out, in terms of your witness list and availability and so forth and -- and you'll see that, as well, in our next memorandum with the dates to the parties. But, let's wait and hear what the Company can come up with. It's -- does anybody else want to be heard on this issue?

MR. FUNK: Yes, this is Peter

Funk and States for Estates and our preference would be to move ahead in -- in January.

A.L.J. LEARY: Okay. I -- I can assume everybody is going to like January, so no one else needs to tell us that.

MR. BERKLEY: Yes, Your Honor?

A.L.J. LEARY: Go ahead.

MR. BERKLEY: And, forgive me, Your Honor. This is Richard Berkley from PULP. We just got out of the subway. We would prefer January also because we're going to be in some other litigation in early December down in D.C.

A.L.J. LEARY: So, you're last name is?

MR. BERKLEY: Berkley, B-E-R-K-L-E-Y, Richard, Public Utility and Law Project.

A.L.J. LEARY: Yup, thank you. I was doing that for the court reporter. We're being transcribed.

MR. BERKLEY: Perfect. Thank you, Your Honor.

A.L.J. LEARY: Thank you. Okay. Thanks.

MS. KASOW: And, this is Jillian

Kasow with U.I.U. We just wanted to weigh in a little bit more. If we get into mid-December dates, there may be a -- a pretty high cost to hotel for a lot of parties in New York City because of the holidays. So, we just wanted to raise that potential issue, if we start getting into any of those dates.

A.L.J. COSTELLO: Yeah. Right now, we intend to have the hearings in Albany, just so -- that's -- that's what we've been scheduling. I am going to have -- look into the possibility of -- to accommodate the City but I haven't -- haven't done that yet, with respect to if there's any other way that they can have testimony provided, so that not all witnesses have to come up but that's -- that's something that I have to look into, as of yet. But, at -- at -- at the current time, we are thinking of where -- planning on holding the hearing in Albany.

MS. KASOW: Thank you.

A.L.J. LEARY: Okay. And, we'll do the best we can, in terms of flexibility about whether we do travel down to New York for

one day or more and -- and we will let you know after we take a look. All right. Anything else?

A.L.J. COSTELLO: Not for me.

A.L.J. LEARY: Okay. Mr. O'Brien, we will wait to hear from you by email tomorrow and we will get out a memorandum, depending on what that response is, thereafter. Does anyone have any other input they want to provide, at the time, for the record? Okay. Excellent. Thank you everyone for making the time to speak with us today and we look forward to seeing you soon, I suppose; anyway, not that soon perhaps. We are off the record.

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STATE OF NEW YORK

I, KAYLA ALLEN, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 19, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 12th day of November 2019.

KAYLA ALLEN, Reporter